

25TRCV02565 25TRCV02565

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV02565 Hearing Date: August 19, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Wednesday, August 19, 2026

Department M Calendar No.

PROCEEDINGS

Alan

Elias v. Eddie Shad, et al.

25TRCV02565

1.

Alan Elias'

Motion for Distribution of Funds After Partition

TENTATIVE RULING

Alan Elias' Motion for Distribution
of Funds After Partition is granted.

Background

Plaintiff filed the Complaint on August 1, 2025 and
the First Amended Complaint on December 11, 2025. Plaintiff alleges the
following facts. This is a partition action as to two commercial properties.

Motion for Distribution of Funds

Code Civ. Proc., § 873.810 states:

“The court shall order the proceeds of sale and any security therefor to be paid, transferred, deposited in court, placed in trust, or invested in State of California or United States government obligations or interest-bearing accounts in an institution whose accounts are insured by an agency of the federal government, to or for the benefit of the persons in interest entitled thereto, as may be appropriate or as specifically provided in this article.”

Code Civ. Proc., § 873.820 states:

“The proceeds of sale for any property sold shall be applied in the following order:

(a) Payment of the expenses of sale.

(b) Payment of the other costs of partition in whole or in part or to secure any cost of partition later allowed.

(c) Payment of any liens on the property in their order of priority except liens which under the terms of sale are to remain on the property.

(d) Distribution of the residue among the parties in proportion to their shares as determined by the court.”

Plaintiff moves for an order “to distribute funds after a partition sale of the 116 E Alondra Blvd., Gardena, CA 90248-2806, designated as Los Angeles County Assessor Parcel Number 6125-015-002.” (Notice of Motion, p. 1, lines 24-26).

On August 5, 2026, Defendants filed a declaration from their attorney Michael Goch who states that the parties have agreed to stipulate as to one specific issue. Defendants contend that they did not object to the method of distribution except for a minor adjustment based on an unpaid sanction. Defendants contend that Plaintiff does not object to this adjustment

and the parties have entered into a stipulation governing the method of distribution after accounting for this adjustment.

Therefore, Plaintiff's Motion for Distribution of Funds is granted. Plaintiff is directed to prepare a proposed order that accounts for the terms of the parties' stipulation.

Plaintiff is ordered to give notice of this ruling.